



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 01, 2021

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11634
(TENTH REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce, by motor vehicle, of materials offered as limited quantity without inner packagings having to be packed, secured and cushioned within the outer packaging as required by the Hazardous Materials Regulations (HMR), subject to the conditions and limitations specified herein. This special permit provides no relief from the HMR other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATION FROM WHICH EXEMPTED: 49 CFR § 172.301(c) in that each package must be marked with the special permit number and § 173.24a(a)(3) in that inner packagings must be secured and cushioned, except as specified herein.
5. BASIS: This special permit is based on the application of Avon Products, Inc., dated September 7, 2021, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Materials meeting the applicable limited quantity exception and marked in accordance with 172.315*	As appropriate	As appropriate	As appropriate

*This special permit authorizes only the offering and transport of consumer commodities such as cosmetics, toiletries, fragrances, and other personal care items.

7. SAFETY CONTROL MEASURES: Packages must comply with all requirements applicable limited quantity, except that inner packagings need not be packed, secured and cushioned within the outer packaging as provided for in § 173.24a(a)(3) if each package offered for transportation is capable of withstanding, without leakage from the inner packagings: (a) a drop test from a height of 1.2 m (4 feet) onto a rigid, non-resilient, flat and horizontal surface in the orientation most likely to result in failure of the package; and (b) the vibration standard prescribed in § 178.608.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- c. This special permit authorizes only the transport of packages prepared to fill orders placed by Avon Representatives, and that are being transported from an Avon regional distribution center to the Avon Representative.
- d. MARKING: Markings must meet the requirements applicable to limited quantities.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: Packages authorized for transport under this special permit may only be transported by a private or contract motor carrier, or a common carrier motor vehicle under exclusive use for such service.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

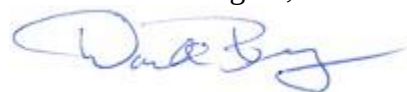
No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-13.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>.

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae